

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO. 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
HEATHER GUNN, JANICE
HODGES, DAKOTA THOMAS,
ELIAS VELASQUEZ and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS’ NOTICE OF NON-OPPOSITION TO
PLAINTIFF’S MOTION FOR LEAVE TO FILE
THIRD AMENDED COMPLAINT**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ, and YUSEF ABDUL-JAMI (collectively, “Defendants”), by and through their undersigned counsel, and pursuant to the Court’s October 24, 2025 Order (ECF No. 15), hereby file this Notice of Non-Opposition to Plaintiff’s Motion for Leave to File Third Amended Complaint and state as follows:

1. On October 22, 2025, Plaintiff served the undersigned counsel with courtesy copies of Plaintiff's Motion for Leave to File Third Amended Complaint ("Motion for Leave") and a proposed Third Amended Complaint.

2. Plaintiff's Motion for Leave was docketed as filed on October 24, 2025. ECF No. 16

3. Plaintiff's initial version of the Third Amended Complaint was deficient because, for instance, it incorporated by reference factual allegations from other unspecified documents and it did not clearly identify the parties against whom each count was pled.

4. The undersigned counsel conferred with Plaintiff regarding the initial version of the Third Amended Complaint.

5. As a result, Plaintiff filed a Revised Third Amended Complaint on November 5, 2025. ECF No. 18

6. The Revised Third Amended Complaint cures certain pleading deficiencies in that it includes factual allegations (rather than incorporating them by reference) and identifies the defendants against whom each count is pled.

7. Given the liberal standard generally applicable to motions for leave to amend the pleadings, Defendants do not oppose Plaintiff's Motion for Leave with respect to the Revised Third Amended Complaint.

8. However, Defendants note that Plaintiff's Revised Third Amended Complaint fails to state any viable claim. For instance, claims of violation of public policy (Count VIII) and wrongful termination (Count X) are not recognized causes of action under Florida law. Accordingly, Defendants intend to file a Motion to Dismiss the Revised Third Amended Complaint should the Court grant Plaintiff's Motion for Leave.

9. By filing this Notice of Non-Opposition, Defendants do not intend to waive (and they expressly reserve) any available defenses or affirmative defenses they have to Plaintiff's Revised Third Amended Complaint.

DATED this 7th day of November, 2025.

Respectfully submitted,

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Attorney for Defendants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of November, 2025, the foregoing was electronically filed with the Clerk of the Court by using the CM/ECF system, and a copy was furnished by email to Debra Nelson, [REDACTED]
[REDACTED]

/s/ Zackary A. Blanton
Zackary A. Blanton